

Calaveras Superior Court
Civil Law & Motion Calendar Tentative Rulings
Friday, April 23, 2021, Courtroom #2
Hon. David M. Sanders

9:00 17CV42160 Demurrer by Angels Gun Club to 4th Cause of Action in 3rd 02/02/2017 05/12/2021 Case Management Conference
Amended Complaint

Ptff/Pet: Tryon, Thomas
Def/Res: Angels Gun Club Inc.

Atty: Mooney, Donald Burns
Atty: Wood Smith Henning & Berman LLP

Tentative Ruling: On September 29, 2020, a filed stipulation and order allowed plaintiff leave of court to file the third amended complaint, which was filed on October 8, 2020. On February 19, 2021, defendant filed a demurrer that was overruled for failure to comply with Local Rule 3.3.7. On March 29, 2021, defendant refiled the general and special demurrer to the fourth cause of action on the grounds that plaintiff failed to state facts sufficient to constitute a viable cause of action.

Defendant's request for judicial notice as to plaintiff's original Complaint, plaintiff's First Amended Complaint, and plaintiff's Second Amended Complaint, pursuant to Evidence Code sections 452 and 453, is GRANTED.

Plaintiff's request for judicial notice as to the Second Amended Cross-Complaint, the Third Amended Cross-Complaint, and the Court's March 26, 2021, ruling on defendant's demurrer, pursuant to Evidence Code sections 452 and 453 is GRANTED.

Plaintiff contends this demurrer is untimely as the parties agreed defendant could file the demurrer by February 22, 2021. The original demurrer was filed on February 19, 2021; however, that demurrer was overruled on March 26, 2021, based upon defendant's failure to comply with Local Rule 3.3.7, "without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes". Plaintiff now argues this demurrer was filed late and should be overruled on this procedural basis; Defendant contends it was timely based on CRC 3.1320(j) which provides in pertinent part, that "[u]nless otherwise ordered, defendant has 10 days to answer or otherwise plead . . . following: (1) The overruling of the demurrer . . ." Based on the foregoing, defendant timely filed this demurrer on March 29, 2021, within 10 days of the procedural overrule.

An agreement, referred to as Exhibit A in many of the pleadings, allows both parties to perform certain activities on these parcels. Although the parties may disagree whether the agreement equals a license or an easement, plaintiff had permission to be on the property. Based on this agreement, plaintiff's argument that he meets all of the elements of a prescriptive easement fails, as a matter of law, because he cannot meet one of the main elements of open and hostile use because he had permission to use the land. Therefore, based on the foregoing, defendant's general demurrer to the fourth cause of action is SUSTAINED WITHOUT leave to amend.

Defendant's special demurrer to the fourth cause of action to the Third Amended Complaint is a misnomer and is not supported by any legal argument and additionally is moot in light of the foregoing ruling. Therefore, the special demurrer is OVERRULED.

The clerk shall provide notice of this ruling to the parties forthwith. The Court will sign the Order prepared by defendant.